

AI ETHICS LEARNING TOOLKIT

Is AI Theft?

Exploring Copyright and Intellectual Property?

“This harvesting of our work, scraping and impersonating our styles, it’s the same as a parasite that sucks the light out of its host without invitation.”

– Tim Flach, wildlife photographer, one of the most “scraped” artists in the world

To many users, AI seems like magic. It can generate images, write papers, and summarize complex topics into tidy bullet points. But what sources are under AI’s hood? How does it know so much? AI models are trained on vast amounts of human-generated content from the internet – including everything from transcribed YouTube videos and Reddit threads to image libraries and the entire text of Wikipedia. This raises a critical legal and ethical question: Are AI companies committing **copyright infringement** by scraping and using this content without permission? The *New York Times*, numerous authors, artists, and musicians think so. They’ve filed lawsuits against companies like OpenAI and Meta, arguing that their work fuels these models – yet they receive no credit, attribution, or

compensation. AI companies defend their practices by citing the **Fair Use** doctrine, claiming that AI outputs are “transformative” – computational mashups that are fundamentally different from the original works. But many legal questions remain unresolved, and frustration is building across the many creative industries that are impacted. As students increasingly turn to AI, it’s important for them to consider not just what the tools can do, but the human contributions and **intellectual property** that made them possible. Understanding the legal and ethical issues is key to becoming a responsible and informed user.

Learning Activities

Conversation Starters A Few Questions to Get the Discussion Going

- Have you heard/read any stories about artists, musicians, authors speaking out about their work being impacted by AI? If so, are you sympathetic?
- How do you see the long-term impacts of generative AI on creative industries (e.g., writing, art, music, movies/TV)?
- Do you think artists, musicians, writers should be credited and/or compensated by AI companies who have trained on their work? What would a fair system look like?
- Is it legal to upload copyrighted content to AI to get summaries for personal use? How aware are you of copyright restrictions with AI tools that you use? Who might be harmed by copyright violations with AI?
- What responsibilities should students or researchers have when giving credit to AI-generated content they relied on in their own work?



Active Learning with AI

Fun Ways to Explore AI's Strengths and Limitations

- Prompt ChatGPT for the full text of something you know to be copyrighted (Ex. a chapter from your Chem 101 textbook). How does it respond?
- Prompt ChatGPT to mimic lyrics “in the style of” your favorite artist, musician, or writer (Ex. *In the style of Taylor Swift, write me a song about getting ghosted by a friend*). What do you think about the output? Could you see ‘mimicry’ as potentially harmful?
- Try a music generator (ex. [Suno](#)) and create a song. What was your prompt? What do you think about the output? Could you see this as potentially harmful?



Disciplinary Extensions

Ideas for Exploring AI's Impact in Specific Fields

- **Journalism/Public Policy:** How does AI harm journalism? Use a Case Study, like the *New York Times* lawsuit, to have students debate the legal arguments
- **Art/Visual Studies/Film** Discuss the impact of AI on the art and film industry. Case study on the OpenAI Studio Ghibli AI ([background article](#)).
- **I&E/Engineering:** Engineering, or I&E, students can explore the intellectual property issues behind engineering design involving AI. E.g. If an AI tool is used to design a product, who should own the result? The user, the developer, or the company behind the AI?

- **Literature:** The question of whether and how digital humanists can conduct quantitative works has been a discussion for a long time. Some publishers (like JSTOR and Wiley) already license their copyrighted materials for scholars to conduct “distant reading.” Is this use case different from licensing AI models to train on copyrighted materials? Why or why not?

Resources

- Menand, L. (2024, January 15). [Is A.I. the Death of I.P.? *The New Yorker*](#). [Magazine article]  
- Knibbs, K. (2023, Nov. 6). [Johnny Cash’s Taylor Swift Cover Predicts the Boring Future of AI Music](#). *Wired*. [Magazine article]  
- Sellman, M. (2025, February 7). [Photographer says AI being used to copy his work](#). *The Times*. [News article]  
- Barbaro, M., et al. (2024, April 16). [A.I.’s Original Sin](#). *The New York Times*. [Podcast] 

Scholarly

- Goetze, T. S. (2024). [AI Art is Theft: Labour, Extraction, and Exploitation, Or, On the Dangers of Stochastic Pollocks](#). *The 2024 ACM Conference on Fairness, Accountability, and Transparency*, 186–196. [Conference paper]  
- Congressional Research Services (CRS) Report. (2023, September). [Generative Artificial Intelligence and Copyright Law](#). [Government report] 
- Reed, R. (March 22, 2024). [Does ChatGPT violate New York Times’ copyrights?](#) Harvard Law School. [Interview] 

Recommendations

- Related topics → Who builds our AI?
- [AI Pedagogy Project \(Harvard\) Assignments](#) → Filter by theme (e.g. misinformation) and/or subject (e.g. ethics & philosophy)
- [Copyright & IP-related Articles](#) from the AI Ethics & Policy News Aggregator sourced by [Casey Fiesler](#).
Note: This would be an excellent place to identify recent news stories you could share with students, or

incorporate into a case study.

1. Sellman, M. (2025, February 7). [Photographer says AI being used to copy his work](#). *The Times*.

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